

Premium Subscription Agreement for Cloud Data Storage Service

Service Provider / Licensor: Cyber Cloud Technology Co., Ltd., a corporation legally organized and existing under international computing standards laws, with its principal corporate headquarters located at Cyber Tower Suite 404, Tech District (hereinafter referred to as "**Party A**").

Service Consumer / Licensee: Any verified individual, corporate entity, or institutional user who accesses, purchases, or subscribes to the automated data hosting frameworks described herein (hereinafter referred to as "**Party B**").

This Master Subscription Agreement (the "Agreement") governs the provisioning, access, and programmatic utilization of the enterprise-tier cloud data storage platforms operated by Party A. By checking the explicit "I Agree to the Terms of Service" digital box on the network provisioning page, or by completing any monetary payment transactions, Party B explicitly enters into a legally binding contract with Party A. Both parties agree to adhere strictly to the terms, metrics, and liabilities structured below:

Section 1: Scope of Service Architecture & Performance Standards (SLA)

1.1 Party A agrees to allocate and maintain a high-speed, secure, and dedicated cloud storage instance for Party B, featuring a base physical capacity of **5 Terabytes (5TB)**. This storage structure is hosted across geographically redundant data facilities engineered to withstand concurrent hardware node failures without data corruption.

1.2 **Service Level Agreement (SLA) Commitment:** Party A guarantees an operational service availability uptime metric of no less than **99.9%** on a monthly trailing average. This availability scale excludes scheduled network maintenance windows, which must be announced to Party B at least 48 hours via system dashboards or official email channels.

1.3 **Technical Support Infrastructure:** Party A maintains a dedicated network operations center operating 7×24×365. In the event of a critical system degradation or data access block, Party B may raise a high-priority ticket. Party A's engineering team commits to a formal initial response and diagnostic time window not exceeding **2 hours** from the timestamp of submission.

Section 2: Monetary Terms, Subscription Cycles & Data Retention Policies

2.1 **Subscription Pricing Model:** The premium tier service is structured on an annual advance-payment framework. The fixed cost is set at **RMB ¥1,999 per fiscal year**. This pricing is locked for the initial term of this agreement but may be adjusted upon renewal subject to macro market infrastructure costs, provided Party A gives 30 days advance notice.

2.2 **Renewal and Expiration Reminders:** Exactly 7 calendar days prior to the expiration of the active subscription cycle, Party A's automated billing system will emit notification alerts to Party B via SMS, registered email addresses, and account-level system pop-up notifications to prevent accidental disruption of service.

2.3 Grace Period and Graceful Data Degradation: If Party B fails to clear the renewal invoice prior to the expiration timestamp, the system will instantly shift Party B's profile to a restricted read-only mode, disabling new uploads. Party A covenants to retain all historically uploaded data blocks securely for a grace period of **30 calendar days** at zero cost to Party B. If Party B fails to renew after 30 days, Party A retains the unilateral legal right to execute a permanent data wipe across all primary and backup storage arrays.

Section 3: Data Security, Absolute Privacy & Algorithmic Confidentiality

 **Critical Enterprise Encryption and Privacy Covenant:** Party A strictly complies with international data privacy architectures and cybersecurity standards. All incoming and resting data payloads are subjected to automated, zero-knowledge, enterprise-tier **AES-256 cryptographic protocols**. Under no operational circumstance shall Party A's personnel view, parse, execute, index, metadata-mine, or modify any files stored within Party B's instance. Party A guarantees that no data blocks will ever be transferred or disclosed to any third-party marketing, analytics, or institutional entity, except when mandated by an explicit, unappealable court order issued by a judicial authority with competent legal jurisdiction over Party A's operating environment.

Section 4: Limitation of Liability, Indemnification & Force Majeure

4.1 Force Majeure Disclaimers: Neither party shall be held legally liable for any performance failure, loss of data, or operational latency caused directly by occurrences beyond reasonable human control. This includes catastrophic natural events, global undersea fiber-optic cable cuts, systemic regional grid collapses, national martial law declarations, major geopolitical policy changes, or state-sponsored Advanced Persistent Threat (APT) cyber warfare attacks targeting international backbone routing structures.

4.2 Liability Cap: Under all circumstances not involving gross negligence or intentional criminal misconduct, Party A's maximum aggregated financial liability for any proven direct damages, system outages, or accidental data loss events shall be strictly limited to the actual net monetary amount paid by Party B to Party A for the specific active annual subscription cycle during which the incident occurred.

Section 5: Intellectual Property Rights & Acceptable Use Policy

5.1 Party B retains absolute, uncompromised ownership and copyright over all data blocks, files, software packages, media assets, and cryptographic keys uploaded to the storage instance. Party A claims no derivative license or intellectual property rights over any part of Party B's uploaded material.

5.2 Prohibited Content and Activities: Party B explicitly agrees not to utilize the allocated storage instance to host, distribute, or compile malicious software components (malware, ransomware tracking scripts), pirated material that violates international copyright frameworks, or any content that directly breaches public security laws. Violation of this clause grants Party A the right to suspend the service instance immediately without financial compensation.

Section 6: Governing Law & Binding Dispute Resolution Mechanics

6.1 This agreement, its structural validity, operational performance, and all legal interpretations shall be governed exclusively by the laws and legal frameworks of the People's Republic of China, without reference to conflict of law principles.

6.2 Arbitration and Litigation Framework: In the event of any operational dispute, billing friction, or contractual interpretation disagreement, both parties shall first engage in a 15-day good-faith corporate negotiation phase. If the issue remains unresolved after this period, either party must file a formal lawsuit exclusively within the People's Court possessing competent local jurisdiction over the geographic city sector where Party A's main corporate legal headquarters are physically registered.

Party A: Cyber Cloud Technology Co., Ltd.

Authorized Signature: _____

Corporate Seal Space:

Date: May 19, 2026

Party B: Service Subscribing Entity / User

Authorized Digital Confirmation Status: VERIFIED

IP Address of Assent: Logged on Server Backend

Timestamp: Date of System Activation